

25 March 2024

Ref.: CL/4467

Subject: **11th consultation on the implementation of the 1960 Convention and Recommendation against Discrimination in Education**

Sir/Madam,

The right to education for all, without any form of discrimination, is one of the major challenges we face today worldwide.

While significant progress has been made in improving access to education in recent decades, some 250 million children and young people are still out of school.

The 1960 Convention and Recommendation against Discrimination in Education – major global normative instruments protecting the right to education – reflect UNESCO's mission which, according to its Constitution, is to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social.*”

Under Article VIII of UNESCO's Constitution, Member States are required to submit regular reports on the measures they have taken to implement the conventions and recommendations adopted by the Organization.

We are therefore launching the eleventh Consultation on the implementation of the 1960 Convention and Recommendation, and I invite your government to prepare a national report covering the 2021-2024 period. To assist your authorities in this regard, please find enclosed the **Guidelines for the preparation of reports**.

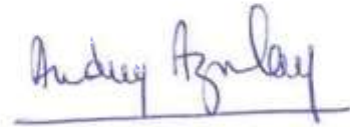
Please note that the Recommendation is monitored in conjunction with the Convention and the reporting obligation for both instruments is the same, therefore **all Member States**, including non-State Parties to the Convention, need to submit a report.

Member States are encouraged to organize the necessary consultations including with relevant civil society organizations and other key stakeholders.

The detailed arrangements for the submission of reports will be communicated to the Permanent Delegations to UNESCO.

The report should be submitted **no later than 30 June 2024**, in order for the Secretariat to prepare an analytical global report and submit it to UNESCO's governing bodies.

Please accept, Sir/Madam, the assurances of my highest consideration.

A handwritten signature in blue ink, reading "Audrey Azoulay", written over a horizontal line.

Audrey Azoulay
Director-General

Enclosures: 1

– Guidelines for preparation of national reports

cc: Permanent Delegations to UNESCO
National Commissions for UNESCO
Regional Offices
Field Offices

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to ‘include everyone, regardless of circumstance, context or background’. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](#)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](#)

consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in *italics*.

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ <http://data.uis.unesco.org/>

GENERAL INFORMATION:

Country name: UGANDA

Organization or entity responsible for the preparation of the report:

Uganda National Commission for UNESCO

contact person: Twebaze David

Email and telephone number of contact person: David.twebaze@unesco-uganda.ug

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

✓ Yes

No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

✓ Yes ☐ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

✓ No

Yes: Have the provisions of the Convention been invoked?

¹⁰ <https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

¹¹ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

☐ Yes

☒ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

Ministry of Education and Sports, Ministry of Gender Labor and Social Development, Ministry of Justice and Constitutional Affairs

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

It further corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☒ Yes

☐ No

- If yes, please provide reference:

The Constitution of the Republic of Uganda (1995) Article 30, Article 34 section 2

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation ¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

☐ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

☒ In pre-primary education (including early learning and care)

¹² Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

- ✓ In primary education
- ✓ In secondary education
- ✓ In technical and vocational education and training
- ✓ In higher education
- ✓ In adult education and alternative learning

- Please indicate the relevant legal provisions:

The Constitution of the Republic of Uganda (1995) as amended in (2005) Education Act 2008, Education Act – Statutory Instrument 127-volume 6, Technical vocational Education and Training Policy (TVET Policy), child rights in Uganda, the National Integrated Early Childhood Development Policy, the Early Childhood Care and Education Policy

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

Sex, Race, Ethnic origin, Tribe, Religion, Creed or Social or Economic standing, Birth, Disability, Political opinion.

☐ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

- ✓ In pre-primary education (including early learning and care)
- ✓ In primary education
- ✓ In secondary education
- ✓ In technical and vocational education and training
- ✓ In higher education
- ✓ In adult education and alternative learning

- Please provide details:

Provision of Universal primary education which is free and compulsory , provision of Universal secondary education which is free secondary school education, Gender Equality strategy in Uganda 2022-2025, Education Act 2008, the National equal opportunities policy, Equal opportunities Commission in Uganda, Gender mainstreaming policy in Uganda, Committee on elimination of discrimination against women in Uganda, the disability act of 1996, the disability trust of Uganda, the National Integrated Early Childhood Development Policy, the Early Childhood Care and Education Policy

☐ Combatting discrimination in terms of curriculum:

- ✓ In pre-primary education (including early learning and care)
- ✓ In primary education
- ✓ In secondary education
- ✓ In technical and vocational education and training
- ✓ In higher education
- ✓ In adult education and alternative learning

- Please provide details:

Inclusion of human rights, democratic citizenship and intercultural education in the curriculum, involving learners in peer education and peer mediation activities, using inclusive language and providing language development i.e. we have the thematic curriculum used in the Primary School subsector that gives emphasis on use of mother tongue as a medium of instruction, promotion of individual learners capacity for participation in the lower secondary School curriculum, Involving parents in decision making process in Schools, setting up mechanisms in schools to monitor incidents of discrimination, protection of learners wellbeing and having mechanisms to ensure education success, use of a whole school approach, use of learner centered approaches in teaching and learning, use of gender responsive approaches in learning and teaching, prioritizing achievement among learners cultural and intercultural competencies, promotion of tolerance through peace education, accessibility of the physical learning spaces(environment)

☐ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

Development of the gender Equality strategy in Uganda 2022-2025, Education Act 2008, the National equal opportunities policy, Equal opportunities Commission in Uganda, Gender mainstreaming policy in Uganda, Committee on elimination of discrimination against women in Uganda, the disability act of 1996, the disability trust of Uganda, the National Integrated Early Childhood Development Policy, the Early Childhood Care and Education Policy

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- | | |
|--|--|
| ✓ Legislation provides for inclusive education for all | ✓ Multiple and flexible learning pathways ¹⁷ are provided for |
| ✓ Policy measures aim to enhance inclusion in education for all | ✓ Curricula and teaching methods are inclusive in design ¹⁸ |
| ✓ Teachers are trained on inclusive education ¹⁶ and to value diversity | ✓ Multilingual and intercultural education is supported |
| ✓ Initiatives to address discrimination and promote cultural diversity and mutual acceptance | |

Other:

Universal Primary Education (Free and Compulsory Primary education), Universal Secondary Education (Free Secondary Education), Higher Students Loan Scheme

Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Establishing the committee on elimination of discrimination against women in Uganda, the National Integrated Early Childhood Development Policy, the Early Childhood Care and Education Policy the disability act of 1996, Policy on Inclusive education and the Constitution of the Republic of Uganda Article 21, 23(1),(2),

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

- Development of non-discriminatory policies and practices
- Development of an inclusive learning environment
- Improving teaching and learning processes
- inadequate funding to the education sector
- Coordination between relevant education bodies
- Inadequate advocacy efforts focused on raising awareness and empowering people to recognize, prevent, and combat discrimination through the continuous promotion of the Guidelines and assistance to education authorities in developing effective internal acts and procedures.
- Limited technical capacity to support children with special needs.

¹ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper: Inclusive teaching: preparing all teachers to teach all students](#), 2020, p.14.

¹⁷ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

Other relevant general measures, including gender equality

- | | |
|---|---|
| <ul style="list-style-type: none"> ✓ Legislation provides for gender equality in education ✓ Policy measures aim to enhance gender equality ✓ Gender-responsive education sector planning is undertaken ✓ Providing positive or affirmative action measures ✓ Providing financial incentives and fellowships ✓ Teachers are trained (initial and in-service) on gender equality ✓ Teachers are trained to combat stigmatisation¹⁹ ✓ Other: | <ul style="list-style-type: none"> ✓ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education ✓ Re-entry programmes for young mothers are provided for ✓ Ensuring safe and adequate gender-sensitive sanitation facilities²⁰ ✓ Curricula are rid of all stereotypes²¹ and bias ✓ Ensuring gender parity in science, technology, engineering and mathematics (STEM) ✓ Ensuring gender parity in technical and vocational training education and training (TVET) |
|---|---|

Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Development of the gender Equality strategy in Uganda- 2022-2025, the National equal opportunities policy, formation of the equal opportunities Commission in Uganda, development of the Gender mainstreaming policy in Uganda, formation of the committee on elimination of discrimination against women in Uganda, development of the disability act of 1996, formation of the disability trust of Uganda, promotion of the National Integrated Early Childhood Development Policy, and the development of the Early Childhood Care and Education Policy

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

- Limited access to resources
- Opportunities and services in the education sector even in communities where girls outnumber boys in schools
- Continued school drop-out especially for girls
- Resistance to change of cultural norms.
- Inadequate empowerment and participation of both boys and girls in decision making processes on matters that affect them.

- Does the legal minimum age for marriage conform to international standards (18 years) ²²:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

✓ Yes, No

¹⁹ ' Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

²⁰ ' Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

- ²¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).
- ²² Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

- In this case provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

The Marriage Act (1904) for civil marriages sets the legal age of marriage as 21 years for women and men, but they can be married with parental consent at 18 years. Customary Marriage (Registration) Act sets the minimum age of marriage at 18 for both girls and boys.

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

- | | |
|---|---|
| ✓ Legislation provides for the right to education of national minorities | ✓ Teachers are trained on intercultural education |
| ✓ Policy measures aim to enhance the right to education of national minorities | ✓ Teachers are trained to combat stigmatisation ²⁴ |
| ✓ Policy elaboration includes consultations with local communities | ✓ Multilingual and intercultural education are supported |
| ✓ The right to carry out their own educational activities is legally guaranteed for national minorities | ✓ Native language instruction is ensured for national minorities |
| ✓ Educational standards are established for educational institutions run by national minorities | ✓ Adapting curricula and teaching and learning methods to their needs for national minorities |
| ✓ Positive or affirmative action measures are provided for national minorities | ✓ ☐ Curricula are rid of all stereotypes ²⁵ and bias |
| ✓ Financial incentives and fellowships are provided for national minorities | |
- Other²³:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

legislation is in place to affirm the right to education for all, eliminate discrimination and guarantee quality education for all members of minorities. In Uganda we have two groups of minorities the Batwa in Western Uganda and the Lke in Eastern Uganda

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

- Poverty and Financial barriers
- Underrepresentation in decision making.at all levels, political and civil
- Cultural attrition through assimilation.
- Political exclusion and discrimination.
- Identity dilemma.
- Limited access to educational opportunities.
- Historical Biases.
- Negative stereotypes.

Minority cultures, history and contributions do not necessarily reflected in the national curriculum and textbooks.

If the content or practice of education perceived to be discriminatory towards minorities, this may make minority parents less willing to send their children to school. The inclusion of cultural instruction also influences a parent's willingness to send their children to school. Parents may find little benefit, for example, in an education that does not teach traditional livelihoods or culture or which stigmatizes their identity. In particular, minority girls are frequently perceived as the bearers of minority culture. Therefore, where schools are not culturally relevant, parents may not send girls to school, fearing that they will lose their culture.

Some of these policies have resource implications for States, since not all minority groups will have access to positive measures on the part of States. Provision of mother-tongue education for immigrant groups may be a lower priority than, for example, for larger and/or long established minorities. At a minimum, States are expected to ensure non-discrimination in access to and provision of education and not prevent minorities from providing private instruction in their languages, cultures or religions in conformity with domestic law. States should be

Indigenous people:

- ²³ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.
- ²⁴ Supra note 15.
- ²⁵ Supra note 16.

legislation provides for the right to education of indigenous people

Policy measures aim to enhance the right to education of indigenous people

Policy elaboration includes consultations with local communities

The right to carry out their own educational activities is legally guaranteed for indigenous people

Educational standards are established for educational institutions run by indigenous people

Positive or affirmative action measures are provided for indigenous people

Other:

Financial incentives and fellowships are provided for indigenous people

Teachers are trained on intercultural education

Teachers are trained to combat stigmatisation²⁶

Multilingual and intercultural education are supported

Native language instruction is ensured

Adapting curricula and teaching and learning methods to their needs for indigenous people

Curricula are rid of all stereotypes²⁷ and bias

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

N/A

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

N/A

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸:

- | | |
|--|--|
| ✓ Legislation provides for their right to education | ✓ Financial incentives and fellowships are provided for |
| ✓ Policy measures aim to enhance their right to education | ✓ Auxiliary assistance is provided |
| ✓ Inclusion in mainstream schools is ensured | ✓ Multiple and flexible learning pathways ³¹ are provided |
| ✓ Positive or affirmative action measures are provided for | ✓ Curricula are rid of all stereotypes ³² and bias |

²⁶ Supra note 15.

²⁷ Supra note 16.

²⁸ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

³¹ Supra note 13

³² Supra note 16.

- | | |
|---|---|
| ✓ all administrative barriers to access education are removed | ✓ Accelerated learning programmes are provided |
| ✓ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers ²⁹ are provided for | ✓ Non-formal and/or alternative education programmes are provided |
| ✓ Teachers are specifically trained to ensure their inclusion | ✓ Language classes to newcomers are provided for |
| ✓ Teachers are trained to combat stigmatisation ³⁰ | ✓ Multilingualism and intercultural education are encouraged |

Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The refugee act of 2006 describes the dignity and rights of refugees in Uganda that includes the right to access education, the convention governing specific aspects and problems of refugees in Africa (OAU 1969), the refugee response plan by the Ministry of Education and Sports. The International covenant on civil and political rights of refugees, the 1995, Uganda Constitution, (as amended) in 2005 recognizes the importance of human rights and requires the state to ensure that rights of human beings are respected and protected at all times. Article 20(1) states that "fundamental rights and freedoms of individuals are inherent and not granted by the state". This therefore means that by the mere fact that one exists as a human being, one is entitled to the enjoyment of fundamental rights and freedoms. The Children's Act, Uganda, The Prohibition &

Prevention of Torture Act, 2012, the National Policy on Internally Displaced Persons, 2004, guiding principles on Internal Displacement, the Uganda Citizenship and Immigration Control Act, 1999, the Convention and protocol relating to the status of refugees, 1951

Have specific measures been adopted for climate displaced persons?

✓ Yes ☐ No

- Please elaborate:

Planning and financing of primary education, secondary education, vocational and skilling for climate displaced persons, bridging programs in terms of the curriculum developed, construction and expansion of classrooms for host communities, supply of textbooks and learning materials, supply of teachers, accelerated learning programs developed, feeding programs developed, programs for supporting children with special needs developed inspection and support supervision to schools handling learners from climate displaced parents undertaken.

What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

- Providing dedicated adequate financing to migrants and refugee education
- Tuition fees in the universities and other institutions of higher learning
- Stigmatization and discrimination of refugee pupils and students in schools
- Limited opportunities for award of scholarships to refugee and migrant learners
- The lack of educational advice and career guidance
- The effects of COVID-19 on refugee and migrant learners
- Language barrier especially for refugees from DR. Congo, Burundi and Burundi

People with disabilities:

- | | |
|--|--|
| ✓ Legislation provides for their right to education | ✓ Mainstream teachers are specifically trained on disabilities |
| ✓ Policy measures aim to enhance their right to education | ✓ Teachers are trained to combat stigmatisation ³³ |
| ✓ Inclusion in mainstream schools is ensured | ✓ Auxiliary assistance is provided |
| ✓ Special schools are used as resource center to inclusive schools | ✓ Curricula and teaching and learning methods are adapted |
- ✓ Curricula are rid of all stereotypes and bias
 - ✓ Education infrastructure and learning materials are adapted
 - ✓ Positive or affirmative action measures are provided
 - ✓ Financial incentives and fellowships are provided
- Other

- 29 While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication: Handbook on the right to education](#), 2018, p. 96.
- 30 Supra note 15.
- 33 Supra note 15.

Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The Constitution of the republic of Uganda (1995) Education Act 2008, Education Act – Statutory Instrument 127-volume 6, Technical vocational Education and Training Policy (TVET Policy), child rights in Uganda, the National Integrated Early Childhood Development Policy, the Early Childhood Care and Education Policy the National equal opportunities policy, Equal opportunities Commission in Uganda, Gender mainstreaming policy in Uganda, Committee on elimination of discrimination against women in Uganda, the disability act of 1996, the disability trust of Uganda, the National Integrated Early Childhood Development Policy, the Early Childhood Care and Education Policy

What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

- Access to schools is limited especially with distance from homes to where these schools are situated
- Retention and quality are negatively affected by constraints ranging from a lack of physical capacity, Infrastructure, and learning materials
- Inadequate teacher capacity to manage these learners
- Negative attitudes and stigma academic challenges
- Learners usually face social obstacles, the differences in how their brain processes information may mean that their social skills lag behind their peers, impacting their cognitive processing, language retrieval, and mental health.
- Inadequate financial resources provided to responsible institutions at national and local level
- Inaccessible physical environment, (disability-unfriendly classrooms and latrines) communication and information

Students from poor households:

- ✓ Financial incentives and fellowships for school enrolment are provided
- ✓ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education
- ✓ Positive or affirmative action measures are provided
- ✓ Teachers are trained to combat stigmatisation³⁵
- ✓ Curricula are rid of all stereotypes³⁶ and bias
 - Other:

Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The Constitution of the Republic of Uganda (1995) as amended in (2005) Education Act 2008, Education Act – Statutory Instrument 127-volume 6, Technical vocational Education and Training Policy (TVET Policy), child rights in Uganda, the National Integrated Early Childhood Development Policy, the Early Childhood Care and Education Policy

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

- Underprivileged families in Uganda lack the financial resources to access quality education and struggle to cover the associated costs as well as the basic requirements such as school fees, uniforms, textbooks, and other necessary materials
- High cost of quality education that prepares learners to meet the demanding needs of society.
- Declining Gov't Expenditure on Education. 2.5% GDP spent on education (versus >5% target); 8% of national budget in 2020 (versus >20% target).

³⁴ Supra note 16.

³⁵ Supra note 15.

³⁶ Supra note 16.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (*several items may be ticked*):

Prior to pre-primary education, ECCE services are free

Prior to pre-primary education, ECCE services are affordable

- ✓ ECCE services are accessible on a non-discriminatory basis

- ✓ ☐ ECCE services respect a child's need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play.

- Please elaborate further on the measures taken:

- Is compulsory and free of charge pre-primary education available?

☐ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

- ✓ Pre-primary education is **not** compulsory.

☐ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

- ✓ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport

and compulsory levies on parents). Brief quantitative information may be added.

The Constitution of the Republic of Uganda (1995) as amended in (2005) Education Act 2008, child rights in Uganda, the National Integrated Early Childhood Development Policy, the Early Childhood Care and Education Policy

-
- ³⁷ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.
- ³⁸ Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- | | |
|----------------------------------|--|
| ✓ Limited access | ✓ Poor learning outcomes |
| ✓ Issues of equity and inclusion | ✓ Low number of professionally trained educators |
| ✓ Poor quality programmes | ✓ Lack of support to families |
| Other: | |

- Please elaborate. Brief quantitative information may be added.

- limited funding from the state and other key players
- The attitude of rural based parents to support rural Early Childhood Education.
- Failure to develop play-based Learning strategies and approaches: Play Children engage with their environment, develop their imagination, and learn to interact with others through play.
- Failure to development an appropriate curriculum: Activities and materials are tailored to suit each age group's developmental needs and abilities.
- Inadequate supply of qualified and dedicated Educators: Trained teachers who understand child development and effective teaching strategies play a crucial role in early childhood education. They create a nurturing and stimulating environment where children can thrive and reach their full potential.
- Limited safe and nurturing environment: Physical and emotionally safe learning environments are essential for young children. When children feel secure and supported, they are more likely to engage in learning, take risks, and develop a positive attitude toward education.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

6 years for entry and primary Education in Uganda has a duration of seven(7) years

- Is primary education compulsory and free of charge?

- ✓ Primary education is compulsory

- ✓ Primary education is free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

The Constitution of the Republic of Uganda (1995) as amended in (2005) Education Act 2008, Education Act – Statutory Instrument 127-volume 6, child rights in Uganda.

- What challenges were encountered in realizing primary education?

- | | |
|----------------------------------|---|
| ✓ Limited access | ✓ Poor learning outcomes in: |
| ✓ Issues of equity and inclusion | Foundation literacy Numeracy |
| ✓ High dropout rates | ✓ Social and emotional learning |
| ✓ Poor quality programmes | Others |
| ✓ Other: | ✓ Disparity in learning outcomes |
| | ✓ Low number of professionally trained teachers |

- Please elaborate. Brief quantitative information may be added.

- Undeniable benefits of Universal Primary Education
- Inadequate funding from Government and other key actors or stakeholders
- Inadequate supply of resource materials
- Persistent infrastructure gaps
- The issue of teacher recruitment and retention
- Inadequate pupil welfare at school
- High teacher-pupils' ratio
- Lack of a policy design on Universal Primary Education and implementation,
- Poor teacher quality, which is a function of teacher education and the high school drop-outs
- Poor working conditions and motivation for teachers

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

13 years for entry and the duration for lower secondary school is four years

- Please provide the age of enrolment and duration of upper secondary education:

17 years for entry and the duration for upper secondary school is two years

- Is lower and upper secondary education compulsory and free of charge?

Lower secondary education is compulsory.

- ✓ Lower secondary education is **not** compulsory.
- ✓ Lower secondary education is free of charge.

Lower secondary education is **not** free of charge.

Upper secondary education is compulsory.

- ✓ Upper secondary education is **not** compulsory.
- ✓ Upper secondary education is free of charge

Upper secondary education is **not** free of charge.

Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

The Constitution of the Republic of Uganda (1995) as amended in (2005) Education Act 2008, child rights in Uganda. Education Act – Statutory Instrument 127-volume 6

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes o No o

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

- What challenges were encountered in realizing secondary education?

- | | |
|----------------------------------|---|
| ✓ Limited access | ✓ Poor learning outcomes |
| ✓ Issues of equity and inclusion | ✓ Low readiness of primary graduates |
| ✓ High dropout rates | ✓ Low number of professionally trained teachers |
| ✓ Poor quality programmes | |
| ✓ Other: | |

- Please elaborate. Brief quantitative information may be added.

- Inadequate funding from Government and other key actors or stakeholders
- Inadequate supply of resource materials
- Persistent infrastructure gaps
- The issue of teacher recruitment and retention
- Inadequate student welfare at school

- High teacher-student' ratio
- Lack of a proper policy design on Universal Secondary Education and implementation,
- Poor teacher quality, which is a function of teacher education and the high school drop-outs
- Poor working conditions and motivation for teachers especially arts teachers

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of

³⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁴⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items may be ticked):

Higher education is free of charge

- ✓ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ✓ Higher education is accessible through financial incentives and scholarships
- ✓ Higher education is accessible through positive or affirmative action measures
- ✓ Higher education is accessible through credit transfer system between states
- ✓ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).

☐ Other:

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

The Constitution of the Republic of Uganda (1995) as amended in (2005) University and other Tertiary Institutions Act, Education Act – Statutory Instrument 127-volume 6,

- What challenges were encountered in realizing higher education?

- ✓ Limited access
- ✓ Issues of equity and inclusion
- ✓ Poor quality programmes
- ✓ Poor learning outcomes

Other:

- ✓ Low number of professionally trained professors
- ✓ Insufficient mechanisms to ensure smooth transition from secondary to tertiary

Please elaborate. Brief quantitative information may be added.

- Funding challenges. This is mainly because, Government is not funding higher education adequately and the fees that students pay are much less than the realistic unit cost. Public universities depend on government subventions, private students' fees, and very much limited and restricted donor funds.
- Increasing demand for university education, the number of students seeking admission into universities is increasing every year. The capacity of universities to provide quality education to the increasing numbers of students is still wanting. This has led to some universities admitting more students than their facilities can reasonably afford. This is true for both public and private universities
- Shortage of academic staff. Universities in Uganda lack adequate resources to undertake large scale effective staff development programmes
- Poor facilities The growth in the number of students has not been matching with a correspond increase in the number of teaching-learning facilities. Many universities have serious shortages of: Lecture-rooms with overcrowded facilities
- Curriculum issues, Teaching and evaluation methods Most of our programmes have curriculum that is not in tandem with socio-economic development needs of our country given the challenges of living in globalized knowledge-based 21st century. Linkages between university programmes and the industries and other critical needs of employers
- Quality assurance challenges still persist
- Gaps in supply of much needed Instructional materials
- Lack of a national Human Resources development plan or strategy.
- The knowledge society challenges

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked):

- ✓ Provision of education for persons who have not received or completed the whole period of their primary education
- ✓ Provision of literacy programmes
- ✓ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ✓ Provision of free of charge learning opportunities
- ✓ Provision of professional training including reskilling and upskilling programmes

- ✓ Recognition, validation and certification of non-formal and informal learning
- ✓ Provision of free of charge career guidance and counselling
- ✓ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

- Please elaborate further on the measures taken:

- What challenges were encountered in realizing adult learning and education?

- | | |
|---|---|
| ☐ Limited access | ☐ Limited funding |
| ☐ Issues of equity and inclusion | ☐ Poor learning outcomes |
| ☐ Poor quality programmes | ☐ Low number of professionally trained educators |
| ☐ Other: | |

-Please elaborate. Brief quantitative information may be added

- Informational, such as poor access to information and guidance as well as the absence of suitable training opportunities, may be called “structural barriers”.
- Dispositional factors such as internal beliefs and attitudes about the learners, their learning and the educational programs, and that impede participation.
- Learner dropout, learning behavior will continue if the consequences are positive or if unpleasant effects are removed. Likewise, the involvement in learning can decrease if no positive consequences follow
- Financial barriers among state and nonstate players
- Mindset changes especially from the learners
- Value for money
- Having a supportive community

3. quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ✓ State monitoring and inspections
- ✓ Health and sanitation
- ✓ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ✓ Infrastructure
- ✓ Curriculum
- ✓ Student-teacher ratio
- ✓ School fees (if relevant)
- ☐ Other

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

Education Act 2008, Education Act – Statutory Instrument 127-volume 6, Technical vocational Education and Training Policy (TVET Policy), the National Integrated Early Childhood Development Policy, the Early Childhood Care and Education Policy, Universal Primary Education, Universal Secondary Education, Teacher Management Development Scheme, National Teachers Policy

- What challenges were encountered in realizing quality education?

- | | |
|--|--|
| ✓ Non-supportive or inadequate learning environments | ✓ Low quality educational infrastructure and materials |
| ✓ Violence in schools | ✓ Inadequate parental support to education |
| ✓ Cost of education | ✓ Long distances to schools |
| ✓ Conflicts or crises | |
- Other:

- Please elaborate. Brief quantitative information may be added.

- High cost of quality education that prepares students to meet the demanding needs of society. Declining Gov't Expenditure on Education. 2.5% GDP spent on education (versus >5% target); ~8% of national budget in 2022 (versus >20% target). Poor policymaking on education issues.
- Challenges of low and inequitable access to education, irrelevant curriculum and poor learning outcomes, inadequate education financing, weak education system capacity, and weak link with the world of work.
- The lack of teachers is yet another huge obstacle to education in the rural areas of Uganda. Actually, in rural areas, it can be extremely difficult to attract good teachers, and hiring, in general, most teachers prefer to teach in urban areas.
- Access to and completion of schooling is inequitable, with girls and children from the poorest families at highest risk of school dropout
- Physical distance is another huge problem children attaining education in mainly rural areas have to go through. Schools are located many kilometers away from their homes, learners have to move for long hours to get to their schools. Many learners fail to go to school because it's far.

- Water and sanitation are essential for life and health, but they are also essential for dignity, empowerment and prosperity. Water and sanitation are human rights, fundamental to every child and adult. But in Uganda, poor sanitation and hygiene, as well as unequal access to safe drinking water affects daily attendance to schools

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ✓ Teacher training is provided without discrimination.
- ✓ Teachers’ average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ✓ Initial training and continuous professional development are provided.
- ✓ Minimum standards and qualifications required for the teaching profession.
- ✓ Measures taken to strengthen the social status and attractiveness of the teaching profession.
- ✓ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ✓ Establishment of performance monitoring systems.
- ✓ Measures taken to increase women in leadership positions in education.

☐ Other:

- Please elaborate on each of the measures taken:

Development of the National Teachers Policy, a hand book on Teachers, Instructors, Tutors Education and training policies guidelines and regulations

- What challenges were encountered in the education personnel?

- | | |
|---|--|
| ✓ Shortages of teaching staff | ✓ Low quality educational infrastructure and materials |
| ✓ Lack of qualified, trained and motivated teaching staff | ✓ High student – teacher ratio |
| ✓ Lack of training centres | |

Other:

- Please elaborate. Brief quantitative information may be added.

- The challenges that teachers face in Uganda include keeping up with technological advancements, addressing learners' diverse backgrounds and levels of preparation, creating relevant and meaningful curricula, balancing the need for assessment with fostering interests of learning.
- Challenges include shortage of teacher educators and inadequate resources. Most teacher preparation institutions either have inadequate or unqualified teacher educators brought by a mismatch between their qualifications and job description. The shortage has led to the deterioration of quality teacher training both pre-service and in-service.
- Teachers attend professional development programmes with expectations in mind. These expectations

include certification, promotions and monetary incentives given that most of these trainings occur during holidays.

- Inadequate funding from the government has also proved to be a challenge in the implementation of Teachers Professional Development programmes. Teachers' poor remuneration and lack of timely promotions has made people choose teaching not by will but as a steppingstone towards other professions. As a result, teaching is no longer a 'calling' but a 'job'. While the government allocates funds to support free primary and secondary education with an aim of realizing the Sustainable Development Goal 4, the efforts will be futile if teacher performance is not supported through continuous professional development and improvement of the teachers' incentives

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

- ✓ Curriculum includes human rights education.
- ✓ Educational and/or extracurricular activities are organized on human rights education.

☐ Other:

- Please elaborate on each of the measures taken:

- Curriculum in primary, Secondary Schools and post Secondary have been integrated with human rights education and peace development studies.
- The Government of Uganda has effectively provided an environment for protection and promotion of fundamental Human Rights and freedoms for peace and sustainable development with respect for all international and UN instruments that are developed for respect of human rights and fundamental freedoms

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. Please specify:
Yes, they do

☐ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). Please specify:

Non State actors in Uganda do provide relevant alternative Education without discrimination

⁴¹ Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

⁴² Private, faith-based, NGOs, community actors.

⁴³ See: Article/Paragraph 1(1).

☐ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

Yes, Legal provisions in Uganda provide for the rights of the parents /legal guardians for providing religious and moral education for their children

☐ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

- ✓ Registration
- ✓ State monitoring and inspections
- ✓ Qualifications of teachers
- ✓ Health and sanitation
- ✓ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools)
- Infrastructure
- ✓ Curriculum
- ✓ Student-teacher ratio
- School fees
- ✓ School closures
- ☐ Other

- [Please elaborate:](#)

- [What challenges were encountered in non-state education provision?](#)

[Digital education](#)

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

- [Please indicate the measures taken to ensure the provision of quality digital education \(several items may be ticked\):](#)

☐ Digital technology use in education is provided for in the legal framework.

[Please indicate the relevant text and provisions:](#)

The National ICT Policy
The Data protection act 2019
The Electronic Transaction act 2011
The electronic signature Act

The National ICT strategy in Uganda

- ✓ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)
- ✓ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.
- ✓ Measures to remove barriers to accessing digital content⁴⁵, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.
- ✓ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.
- ✓ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education
- ✓ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.
- ✓ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

Uganda developed its initial ICT national policy in 2003. The policy framework recognized that Uganda would need to embrace the goal of promoting lifelong learning for all. Objective 2 of the policy addresses literacy improvement and human resource capacity-building with strategies that include:

1. Integrating ICT into mainstream educational curricula as well as other literacy programmes to provide for equitable access for all learners regardless of level
 2. Developing and managing ICT centres of excellence to provide basic and advanced ICT training
 3. Setting up mechanisms that promote collaboration between industry and training institutions to build appropriate human resources capacity
 4. Promoting the twinning of training institutions in Uganda with those elsewhere to enhance skills transfer
- A subsequent e-readiness assessment in 2004 revealed that a focused and co-ordinated approach to implementation was required.

⁴⁴ Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

⁴⁵ Lack of internet connection, basic infrastructure or devices.

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|---|--|
| ✓ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | ✓ Limited access to internet and/or electricity |
| ✓ Lack of equity and inclusion in digital learning solutions | ✓ Limited access to hardware (devices, chargers, etc.) |
| ✓ inadequate safety measures and IT | ✓ Difficulty in regulating the use of digital education solutions |
| ✓ support to respond to issues of child online safety or reduce cyber security risks | ✓ Difficulty in sustainably financing digital education solutions at national scale |
| ✓ Other: | ✓ Lack of digital skills development for meaningful use of digital technology in teaching practice |
| | ✓ Disjointed or fragmented solutions that are not centrally systematized or regulated |

- Please elaborate. Brief quantitative information may be added.

- Lack of genuine ICT software in Institutions of learning
- Inadequate computers in Schools
- Low speed internet
- Lack of motivation from both teachers and learners to use ICT in teaching and learning
- Lack of proper technical expertise or ICT skills among teachers
- Unavailability of latest ICT equipment
- Poor administrative support
- Inadequate power supply in rural areas

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

- ✓ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.

Monitoring results are made public. Please provide the link:

- ✓ Monitoring processes are participatory, inclusive and regular.

- ✓ Sector-wide and multisector approach is adopted to education governance.
- ✓ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.
- ✓ The decision-making process for the allocation of resources to education is transparent
- ✓ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.
- ✓ There is a certain degree of decentralization in favor of local public authorities and autonomy for schools to ensure context relevance of their teaching

Please elaborate on each of the measures taken

- Use of integrated Inspection Systems
- Tracking teacher attendance using devices installed in phones
- Enhancing accountability and participatory governance through technology
- Establishment of school-based inspection and self-assessment systems
- Investing in inspection and ensuring that the follow up is rigorous
- Creating a functioning scheme of service that links teacher (and all education officials') promotion to performance.
- Establishing systems for 'discipline developing more positive approaches to managing learners' behaviour;
- Involving parents in processes of decision making
- Working with the community to prevent the damage done to girls' education and future

What challenges were encountered in terms of governance?

- ✓ Budgetary constraints
- ✓ Absence of supportive/ inconsistent/obsolete legal and policy environment
- ✓ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different level
- ✓ Lack or weakness of monitoring systems –including the lack of reliable data
- ✓ Poor dialogue with teachers' trade unions

Other:

- Holding Institutional leadership to account while respecting governance boundaries
- Getting access to sufficient information
- Constructively challenging institutional management teams
- Understanding and influencing the school's culture and values
- Demonstrating accountability and transparency in financial management
- Managing conflicts of interest

III. Methods used to draw the attention of the various authorities in the country to the instrument

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

-Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked

- ✓ Translation of the Convention/Recommendation into the national and possibly local languages
- ✓ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ✓ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instrument

Other:

Holding consultative meetings with key players in the Education sector